

HEADNOTE

“1. A request to raise or lower the ceiling for recoverable costs (Article 2(4) of the Decision of the Administrative Committee Decision of 24 April 2023 on the scale of recoverable costs ceilings) is only deemed to have been made if it is clear and explicit from the request that a raising or a reduction of the ceiling is sought.

2. A request for an interim award of costs up to a specified amount does not constitute a request to raise or lower the ceiling for recoverable costs.”

COURT
Local Division in Munich

PATENT
EP 3 421 081 B1

KEYWORDS

Cost decision

recoverable costs

PROCEEDINGS
Costs order

A system for neuromodulation

ceiling

request to raise ceiling

Article 69 Legal costs

SUMMARY

The Local Division in Munich issued a costs order. The patent at issue relates to a system for neuromodulation. According to the headnotes of the decision, a party must make an explicit and unambiguous request if it wishes to ask the court to raise or lower the ceiling for recoverable costs under the applicable cost rules. When a party requests an interim award of costs up to a specified amount, this does not count as a request to change the cost ceiling itself.